

POLICY: 02-13	DATE: 4-1-12	REVISION DATE:
TITLE PAGE: Arrest and Investigative Stops		PAGE: 1 of 15
RESPONSIBLE AUTHORITY: Chief Deputy		
REFERENCES: 4 th Amendment		

GENERAL PURPOSE: To establish guidelines for agency arrest procedures.

POLICY: It is the policy of the Lee County Sheriff's Office to protect all individuals' rights, as granted by the United States Constitution, when making any arrest. All arrests should be consistent with state and federal law. (CALEA 1.2.4)

SPECIFIC PROCEDURES:

I. Arrest and Investigative Stops

United States Constitution, Amendment IV: "The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no Warrants shall issue, but upon probable cause, supported by Oath or affirmation and particularly describing the place to be searched and the persons or things to be seized."

A. Introduction

The arrest of a person is a seizure under the Fourth Amendment; for it to be constitutional, it must be reasonable. An arrest is unreasonable unless there is a factual basis for believing that the person to be arrested has committed a crime. The amount of factual information necessary to justify an arrest is called **probable cause**. Probable cause simply means that there is a fair probability that a crime was committed and the defendant committed it.

Not all seizures of persons are as serious as an arrest. A brief stop of a person on a street for some investigative reason, such as questioning or identification, does not always constitute an arrest. Such stops, often called investigative stops or detentions, are legally justified by less factual information than is required for an arrest. Only **reasonable suspicion** of involvement in criminal activity is necessary to justify a brief detention of a suspect.

Law enforcement officers do not “seize” a person merely by approaching them in a nonthreatening manner in a public place, identifying themselves as law enforcement officer, and asking questions if the person is willing to cooperate.

B. Jurisdiction

Officers may use their law enforcement authority over a person only within certain geographical areas and only with certain kinds of offenses. These limitations are called the officers’ **jurisdiction**. Officers must have both **territorial** (geographical) and **subject-matter** (offense) jurisdiction to exercise their law enforcement powers lawfully.

North Carolina courts have decided that officers retain their law enforcement authority twenty-four hours a day, whether they are on-duty or off-duty (assuming they have both territorial and subject-matter jurisdiction).

C. Jurisdiction of Sheriff’s

Sheriffs and their regularly employed deputies and county police may arrest anywhere in the state for felonies committed in their county. They may make other arrests only within their own county or on property or rights-of-way owned by the county outside its limits. In addition, sheriffs and their deputies may arrest with a warrant on any river, bay, or creek adjoining their county. Sheriffs have arrest jurisdiction in cities within their county as well as in the area outside the city.

D. Arrest after Continuous Flight (Hot Pursuit)

Law enforcement officers may arrest outside their territorial jurisdiction under certain circumstances.

1. Hot Pursuit within the State

Sheriff’s and their deputies, may arrest outside their county when the offender has committed a criminal offense within that county and the arrest is made during hot pursuit while the offender is making an immediate and continuous flight from that county.

2. Hot pursuit outside the State

Although normally North Carolina Sheriff’s and their deputies may not arrest once they leave this state, they may arrest outside the state when they pursue a person who has committed an offense in their county and is fleeing into an adjoining state whose laws permit an arrest to

be made under these circumstances. At this time, only Virginia and Tennessee and (as of 2006) South Carolina permit such arrests—and only for felonies. Sheriff's and their deputies may not enter Georgia to arrest.

When deputies pursue a person into another state and arrest the person there, they may not simply bring the arrestee back to North Carolina. Instead, they must take the arrestee to a judicial official in that state and follow the state's procedures on completing custody.

G. Subject-Matter Jurisdiction

Sheriffs and deputy sheriffs may arrest for any criminal offense.

H. Offenses That Occur in Other States

Sheriff's and their deputies may arrest a person who flees to North Carolina after the person has committed a misdemeanor or felony in another state if the sheriff's and their deputies obtain a fugitive warrant for the person's arrest from a North Carolina judicial official.

Sheriff's and their deputies in North Carolina may arrest a fugitive from another state without a fugitive warrant if the person has been charged in the other state with a crime that is punishable there by more than one year's imprisonment.

I. Expanded Jurisdiction through Cooperating Law Enforcement Agencies

North Carolina statutory authority exists for the head of one law enforcement agency to provide temporary assistance to another agency upon its written request. If this assistance includes officers working temporarily with the other agency, the officers have the jurisdiction and authority of both the requesting agency and their own agency.

J. Private Person's Authority to Detain

All person's, whether or not they are law enforcement officers, are authorized to detain offenders under certain circumstances. Sheriff's and their deputies may use this authority when they do not have the authority to arrest.

A Private person may detain an offender whenever he has probable cause to believe that the offender has committed—in his presence—a felony, a breach of the peace (an offense that disturbs the public order and tends to incite others to break the peace), a crime involving physical injury to another, or a crime involving theft or destruction of property. A private person may use only reasonable force in holding the offender and must

immediately notify law enforcement officers and release the offender to them when the officers arrive.

K. Legal Standards

First, a court must decide whether the deputy's conduct was such a significant interference with a person's freedom of movement that a seizure occurred under the Fourth Amendment. The United States Supreme Court has ruled that a seizure occurs when, in view of all the circumstances surrounding the incident, a reasonable person, innocent of criminal activity, would have believed that he or she was not "free to leave."

Courts use an objective standard in determining whether an individual has been seized. The question asked is: How would a reasonable person in the suspect's position view his status? It is not the deputy's subjective belief that controls; nor does the suspect's subjective belief control.

L. Investigative Stop or Arrest

If a court determines that deputies have seized a person, it then must decide whether their conduct constituted an investigative stop or an arrest. Deputies may stop someone if they have reasonable suspicion that the person committed, is committing, or is about to commit a crime. The stop must be brief, and the deputies must pursue an investigation in a diligent and reasonable manner to confirm or to dispel their suspicion quickly. If deputies detain a person beyond these limitations, a court may determine that the seizure was the functional equivalent of an arrest that must be justified by probable cause, even if the deputies never formally arrested the person.

M. Determination Made at the Time of the Arrest or Investigative Stop

Probable cause or reasonable suspicion must be determined from the facts known at the time of the arrest or investigative stop. It is important to remember that whatever incriminating evidence deputies find after an arrest or investigative stop is not relevant when a court determines whether they had a legal justification when they stopped or arrested someone.

N. The Authority to Make an Investigative Stop: Reasonable Suspicion

A court considers many factors when it determines whether a deputy has reasonable suspicion to stop a person. Some of these factors are (1) the officer's observation of conduct that, **in light of the deputy's training and experience**, appears to be criminal; (2) information the officer receives from other officers, citizens, or informants; (3) the time of the day or night; (4) whether the area is a high-crime area; (5) the suspect's proximity to a location where a crime was recently committed or to a home, car, or business where criminal activity may be taking place; (6) whether the suspect is a stranger to the area; (7) the suspect's reaction to the officer's presence, including flight after seeing the officer; (8) the officer's knowledge of the suspect's prior criminal record and activities, if they are relevant to the crime the suspect may be committing; (9) the suspect's flight from the scene of the crime.

These and other factors all must be considered together in determining whether a deputy has reasonable suspicion to make an investigative stop of a person.

There are some common misunderstandings about the legal grounds to make investigative stops of vehicle drivers for motor vehicle violations. First, it is mistakenly asserted that probable cause is necessary to stop a vehicle for a motor vehicle violation. Only reasonable suspicion is required. Second, it is also mistakenly asserted that reasonable suspicion exists to make an investigative stop of a vehicle for impaired driving only if there is evidence of another traffic violation (for example, driving left of center). Reasonable suspicion to stop a vehicle for impaired driving is based on the totality of circumstances, based on the deputy's training and experience that a person is driving impaired.

In *State v. Watson*, the North Carolina Court of Appeals ruled that the following facts were sufficient to provide reasonable suspicion to stop the driver of the vehicle for impaired driving.

At approximately 2:30 am. in June 1993, a trooper of the North Carolina Highway Patrol saw a 1971 ford pickup truck driving on the dividing line of a two lane highway near a nightclub. After the trooper turned to follow the vehicle, he noticed it weaving back and forth in its lane. After observing this behavior for approximately fifteen seconds, the officer stopped the vehicle.

The court noted the trooper's observation of the defendants driving on the centerline and weaving back and forth within his lane for fifteen seconds, and that this activity took place at 2:30 am on a road near a nightclub. The court stated that the totality of circumstances supported reasonable suspicion to stop the vehicle for impaired driving.

O. The Authority to Arrest: Probable Cause

Probable cause requires a showing—considering the totality of circumstances—that a crime was probably committed and the defendant probably committed it. Thus the degree of certainty that corresponds to probable cause is fair probability; that is, the required proof is more than the reasonable suspicion justification but less than that for such other legal evidentiary standards as preponderance of the evidence, more probable than not, more likely than not, prima facie evidence, clear or convincing evidence, or beyond a reasonable doubt.

For the factors a court considers when it determines whether a deputy has probable cause to arrest, see those factors used to determine reasonable suspicion to stop.

P. Determination of Probable Cause
With or without an Arrest Warrant

The determination of whether there is probable cause is the same whether a deputy arrests with or without a warrant. However, a reviewing court may resolve a close case in favor of finding probable cause existed if the arrest was made with a warrant.

Q. Reliable Hearsay

When determining probable cause (or reasonable suspicion), a deputy or judicial official is not bound by the rules of evidence applicable to trial proceedings. Reliable hearsay may be considered.

R. Investigative Stop Based On Reasonable Suspicion

The United States Supreme Court specifically has declined to impose a maximum limit on the length of time allowed for an investigative stop. The Court has said that the permissible length of time will depend on the facts and circumstances of each case, which include (1) whether a deputy diligently pursues a means of investigation that is likely to confirm or dispel his or her suspicions quickly, (2) the suspect's reaction to the deputy's stop, and (3) the officer's need to adjust his or her response to what is happening.

II. Stop without Reasonable Suspicion

A. Service of Legal Process

Officers are authorized to stop a person to serve various kinds of legal process.

B. Execution of a Search Warrant

During the execution of a warrant to search private premises, officers may detain those present for such time as is reasonably necessary to execute the warrant.

C. Public Emergencies

When deputies reasonably believe that it is urgently necessary to save lives, prevent serious bodily harm, or avert or control public catastrophe, they may enter buildings, vehicles, and other premises; limit or restrict where people may go; and take control over others' property. This statutory authority may not be used for law enforcement purpose. Instead, it allows a deputy to control property and persons during emergencies like floods, fires, and hurricanes. See General Statute 15A-285.

When the governor or a local government official declares a state of emergency during a disaster, riot, catastrophe, or similar public emergency, deputies are authorized to restrict the movement of people in public places.

III. The Arrest Warrant and other Criminal Process

A. Criminal Process

A person may be taken into custody either with or without the authority of criminal process. Criminal process includes arrest warrants, orders for arrest, criminal summonses, and citations. In essence, criminal process is a document indicating that a person has committed a criminal offense or an infraction; it either directs a person to appear before a court or directs an officer to arrest and bring the person before a judicial official.

B. Arrest Warrant

An arrest warrant charges a person with a criminal offense (felony or misdemeanor) and orders a deputy to arrest the person and bring the person without unnecessary delay before a judicial official to answer the charge.

Criminal process other than an arrest warrant is issued in at least two common circumstances involving arrests: When a grand jury indicts a person, an order for arrest is issued instead of an arrest warrant because the indictment is the charging document; the only necessary criminal

process is the authority to arrest. If a deputy arrests a person without a warrant and brings the person before a magistrate for the initial appearance, then the magistrate will issue a magistrate's order if the magistrate finds probable cause to charge the person with a crime. An arrest warrant is unnecessary because the deputy has already arrested the person; the only necessary criminal process is a charging document.

C. Paperwork

North Carolina law requires that the issuing judicial official prepare an original and two copies of the arrest warrant. The official prepares white, green, and pink copies of the arrest warrant form and forwards the green copy to the clerk of court's office as a record that the arrest warrant was issued. The official gives the white and pink copies to the deputy for service. When the deputy arrests the person, the deputy gives the pink copy to the defendant and then fills out the return-of-service on the white copy and returns it to the clerk's office or magistrate.

If an arrest warrant is not executed within 180 days of issuance, it must be returned to the clerk. But failure to return the warrant does not invalidate it, and thus a lawful arrest may be made with it.

D. Issuance and Content

Before a judicial official may issue an arrest warrant, the person who is seeking the warrant or criminal summons must present testimony under oath or affirmation. The person's testimony must contain facts from which the official can find probable cause to believe that a crime has been committed and probable cause to believe that the defendant committed it.

E. Validity of Warrant

If a warrant is valid on its face—that is, if all the formal requirements relating to the form and appearance of a warrant are satisfied—deputies are protected from civil liability in serving it even if it is later proved that the warrant is invalid. However, deputies are expected to know at least some of the legal requirements, so a deputy cannot accept just any warrant that is given to them.

The warrant must:

1. be in writing and signed by an authorizing issuing official (the arresting deputy needs to check whether the warrant has been signed properly);

2. be issued in the name of the state;
3. be directed to a specific deputy or class of deputies authorized to execute it;
4. either name or accurately describe the person to be arrested;
5. charge a recognizable criminal offense, even though the charging language may be defective for use as a criminal pleading at trial.

F. Criminal Summons

A criminal summons may charge a felony, misdemeanor, or an infraction. But unlike an arrest warrant, a criminal summons does not authorize an officer to take the defendant into custody. Instead, it orders the defendant to appear in court on a specified date. If the defendant fails to appear in court, then an order for arrest may be issued when the charge was a felony or misdemeanor, and the defendant may also be held in contempt of court after a court hearing is held.

G. Citation

A citation is a directive, issued by a deputy or other person authorized by law to do so, that a person appear in court and answer a misdemeanor charge or an infraction. If, after a citation charging a misdemeanor has been served, it appears likely that the defendant will not appear in court, or if the defendant actually fails to appear in court at the time stated in the citation, an arrest warrant or criminal summons may be issued just as if a citation had never been issued.

H. Order for Arrest

An order for arrest is an order issued by a judicial official that directs an officer to take someone into custody. It differs from an arrest warrant in that it does not charge the person with a crime.

I. Arrest without a Warrant or Order for Arrest

Although the preferred way to make an arrest is with an arrest warrant in the deputy's possession, the law recognizes several instances when a deputy may arrest without a warrant.

J. Warrant or Order for Arrest Has Been Issued

If a deputy knows that an arrest warrant has been issued for a person, whether for a felony or a misdemeanor, he may make an arrest even though he does not have the warrant in his possession (**but note the restrictions on entering premises to arrest**). Mere knowledge that the arrest warrant exists is sufficient to justify the arrest; no additional probable cause is needed.

K. Felony

A deputy may arrest without a warrant when the deputy has probable cause to believe that a felony has been committed and that the person to be arrested has committed it. And it is not necessary that the felony actually have been committed in the deputy's presence. But the deputy may have to obtain an arrest or search warrant, or both, if the deputy needs to enter the defendant's or a third party's home to make the arrest.

L. Misdemeanor

Generally, a deputy may make a warrantless arrest for a misdemeanor in the following circumstances:

1. When the deputy has probable cause to believe that the person has committed a misdemeanor in the deputy's presence, or
2. Offense Out of Presence of Deputy – A deputy may arrest without a warrant any person who the deputy has probable cause to believe:
 - A. Has committed a felony; or
 - B. Has committed a misdemeanor; and:
 1. Will not be apprehended unless immediately arrested, or
 2. May cause physical injury to himself or others, or damage to property unless immediately arrested, or
 - C. Has committed a misdemeanor under G. S. 14-72.1, 14-134.3, 20-138.1, or 20-138.2; or
 - D. Has committed a misdemeanor under G. S. 14-33(a), 14-33(c)(1), 14-33(c)(2), or 14-34 when the offense was committed by a person with whom the alleged victim has a personal relationship as defined in G. S. 50B-1; or

- E. Has committed a misdemeanor under G. S. 50B-1; or
- F. Has violated a pretrial release order entered under G. S. 15A-534.1(a)(2)

M. Delay in Making a Warrantless Misdemeanor Arrest

A deputy who wants to make a misdemeanor arrest without a warrant must make the arrest immediately or lose the authority to proceed without a warrant.

N. The Arrest Procedure

If an arrestee resists a lawful arrest, the arresting deputies are allowed to use the amount of force they reasonably believe is necessary to take the person into custody, but no more.

Deadly force may be used only when it is in fact necessary or appears to be reasonable necessary (1) to protect against deadly force that the arrestee is using to resist arrest or (2) to take into custody, or keep in custody, a person who either is using a deadly weapon in an attempt to escape or presents an imminent threat of death or serious physical injury to others unless apprehended immediately. The United States Supreme Court has indicated that a warning, if feasible, must be given before deputies use deadly force.

O. Assistance from Private People

North Carolina law authorizes a private person to assist deputies in making an arrest or preventing an escape from arrest when deputies request assistance. A person who assists requesting deputies has the same legal rights as the deputies do.

V. Notice of Authority

A. Before Stopping a Vehicle

North Carolina law requires that deputies in a motor vehicle use a warning device when they overtake another vehicle outside municipal limits for the purposes of stopping the vehicle or arresting the driver for a motor vehicle violation.

B. When an Arrest is Made

When deputies make an arrest with or without a warrant, they must tell the arrestee that they are law enforcement officers that the person is under arrest, and why the person is being arrested.

C. Before Entering a Dwelling

Generally, deputies must give notice before they enter. They must state both their authority and their purpose in being there.

D. **Entrance on to Premises to Arrest**

Although deputies may make arrests in public places without a warrant, the United States Supreme Court has stated that the “physical entry of the home is the chief evil against which the wording of the Fourth Amendment is directed” and that “searches and seizures inside a home without a warrant are presumptively unreasonable”. **Therefore, deputies may not enter a home or other place of residence without a warrant to make a routine arrest.** Two exceptions are when (1) deputies receive consent to enter or (2) exigent circumstances justify entering without a warrant.

E. The Defendant’ Home or Other Place of Residence

When consent has not been given and there are no exigent circumstances, officers who want to enter the defendant’s home or other place where the defendant is residing must (1) have the arrest warrant or order for arrest in their possession and (2) reasonably believe that the person to be arrested is present inside.

F. A Third Party’s Home

When consent has not been given and there are no exigent circumstances, deputies who want to enter the home of a third party to arrest a person who does not live there must have a search warrant to do so. Thus, before entering the home of a third party, deputies must

1. have in their possession the arrest warrant or order for arrest for the defendant, or be authorized to arrest the defendant when an arrest warrant or order for arrest has not been issued;
2. have a search warrant to search the third party's premises for the defendant; and
3. have reasonable grounds to believe that the defendant is inside.

G. Exigent Circumstances

The United States Supreme Court ruled in *Welsh v. Wisconsin* that the seriousness of an offense is an important factor in determining whether exigent circumstances exist to permit a warrantless entry into a home to arrest. Factors that the courts will consider in determining exigent circumstances include (1) hot pursuit of a suspect, (2) danger to the public or law enforcement officers outside or inside the dwelling if an immediate warrantless entry is not made, (3) the need to prevent the imminent destruction of evidence, (4) the need to prevent a suspect's escape, (5) whether the suspect is armed, and (6) the gravity of the offense for which the suspect is being arrested.

H. Entrance on to Premises to Accompany the Arrestee

When deputies arrest someone, they may accompany the arrestee wherever he or she goes. Thus the United States Supreme Court has ruled that if the arrestee wants to go home to get a change of clothes, deputies automatically may enter with the arrestee, but are not required to accede to the arrestee's request.

I. Protecting the Unconscious Arrestee

North Carolina law mandates a special responsibility to deputies who arrest a person who is unconscious or semiconscious or for any other reason is unable to communicate with them.

J. Informing the Arrestee of the Charge

North Carolina law requires arresting deputies to inform the arrestee of the offense for which he or she has been arrested.

K. Taking Fingerprints, Photographs, DNA collection

When the crime is a felony and certain misdemeanor, the arresting law enforcement agency is required to see that the arrestee is fingerprinted and photographed. The fingerprints are then forwarded to the State Bureau of Investigation. The person may be subject to DNA collection based on the criminal charges.

L. Juveniles

A juvenile who is taken into custody equal to an arrest of an adult may not be fingerprinted or photographed unless a judge issues a nontestimonial identification order.

However, a juvenile is required to be fingerprinted and photographed if adjudicated delinquent of an offense that would be a Class A through Class E felony if committed by an adult, if the juvenile was ten years old or older at the time the offense was committed.

M. Taking the Arrestee to a Judicial Official

Deputies who make an arrest with or without a warrant must take the arrestee for an initial appearance before a magistrate “without unnecessary delay.”

N. Informing a Minor’s Parent of a Criminal Charge

A deputy who charges a minor with a criminal offense is required to notify the minor’s parent or guardian of the charge as soon as practicable, either in person or by telephone. If the minor has been taken into custody, the deputy or his immediate supervisor must notify the parent or guardian in writing within twenty-four hours of the minor’s arrest that the minor is in custody. If the parent or guardian cannot be found, then the deputy or immediate supervisor must notify the minor’s next-of-kin of the minor’s arrest as soon as practicable. A minor is a person under eighteen years of age. This notification requirement does not apply if (1) the minor has been emancipated (by court order or by being married) or (2) the minor has not been taken into custody and the minor has been charged with a motor vehicle moving violation for which fewer than four driver’s license points are assessed, except that the parent must be notified of an offense involving impaired driving.

The North Carolina law now requires a deputy who charges a student with a felony (except a felony under Chapter 20 of the General Statutes) to notify the principal of the student’s North Carolina public or private school of the charge. The notification may be made in person or by telephone, and it must be made as soon as practicable but at least within five days of the charge. However, if the student is taken into custody, the

deputy or the deputy's supervisor must notify the principal in writing within five days of the student's arrest. This applies only to students who are sixteen or older when they are charged because the applicable statute does not apply to students who are charged in juvenile court.

Approved:

Tracy L. Carter, Sheriff